कर्मचारी भविष्य निधि संगठन
EMPLOYEES' PROVIDENT FUND ORGANISATION
श्रम एवं रोजगार मंत्रालय, भारत सरकार
MINISTRY OF LABOUR & EMPLOYMENT, GOVERNMENT OF INDIA
मुख्य कार्यालय/Head Office
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Website: www.epfindia.gov.in, www.epfindia.nic.in

No. Pension/SupremeCourt/judgement/HPM/2022/Pt Date: 04.05.2023

To,

All Addl. CPFCs, Zonal Offices.
All RPFCs / OICs, Regional Offices.

Sub: Effecting certain provisions of the Code on Social Security, 2020 in respect of Employees' Provident Funds & Miscellaneous Provisions Act 1952 and EPS' 1995– reg.

Madam/ Sir,

Please refer to the G.O.I Gazette Notification No. S.O. 2060(E) dated 3rd May 2023 (copy attached).

2. Vide above Gazette Notification, following provisions of the Code on Social Security, 2020 in respect of Employees' Provident Funds & Miscellaneous Provisions Act 1952 and EPS' 1995 have been notified:

(i) sub-section (3) of section 15, in so far as it relates to the Employees' Pension Scheme, 1995;

(ii) clause (a) of sub-section (1) of section 16, in so far as it relates to the Employees' Pension Scheme, 1995;

(iii) clause (b) of sub-section (1) of section 16;

(iv) sub-section (2) of section 16, in so far as it relates to the Employees' Pension Scheme, 1995;

(v) section 143, in so far as it applies in giving effect to the provisions of sub-clause (ii) of clause (b) of sub-section (1) of section 16 in relation to the Employees' Pension Scheme, 1995;

(vi) sub-section (1) of section 164 to repeal the corresponding provisions of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (19 of 1952) specified in item 3 thereof; and

(vii) clause (b) of sub-section (2) of section 164 in so far as it relates to the Employees' Pension Scheme, 1995.

3. The above provisions of the said Code shall come into force on the 03rd day of May, 2023.

[This issues with the approval of ACC-HQ (Pension)]

Yours faithfully,

(Aprajita Jaggi)
Regional P.F. Commissioner-I (Pension)

CC:-

1. PS to CPFC.
2. FA & CAO, CVO, Director PDNASS, All ZTIs
3. All ACC (HQ)s and ACCs at H.O.
4. Rajbhasha Section for providing Version in Hindi.

रजिस्ट्री सं. डी.एल.- 33004/99 REGD. No. D. L.-33004/99

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असाधारण
EXTRAORDINARY

भाग II—खण्ड 3—उप-खण्ड (ii)
PART II—Section 3—Sub-section (ii)

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श्रम और रोजगार मंत्रालय

अधिसूचना

नई दिल्ली, 3 मई, 2023

का.आ. 2060(अ).—केंद्रीय सरकार, साधारण खंड अधिनियम, 1897 (1897 का 10) की धारा 14 के साथ पठित सामाजिक सुरक्षा संहिता, 2020 (2020 का 36) की धारा 1 की उपधारा (3) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, 3 मई, 2023 को उस तारीख के रुप में नियत करती है, जिसको उक्त संहिता के निम्नलिखित उपबंध प्रवृत्त होंगे, अर्थात्:--

(i) धारा 15 की उपधारा (3), जहां तक यह कर्मचारी पेंशन स्कीम, 1995 से संबंधित है ;

(ii) धारा 16 की उपधारा (1) का खंड (क), जहां तक यह कर्मचारी पेंशन स्कीम, 1995 से संबंधित है ;

(iii) धारा 16 की उपधारा (1) का खंड (ख) ;

(iv) धारा 16 की उपधारा (2), जहां तक यह कर्मचारी पेंशन स्कीम, 1995 से संबंधित है ;

(v) धारा 143, जहां तक यह कर्मचारी पेंशन स्कीम, 1995 की धारा 16 की उपधारा (1) के खंड (ख) के उपखंड (ii) के उपबंधों को प्रभावी करने के लिए लागू होती है ;

(vi) इसके मद 3 में विनिर्दिष्ट, कर्मचारी भविष्य-निधि और प्रकीर्ण उपबंध अधिनियम, 1952 (1952 का 19) के तत्स्थानी उपबंधों के निरसन के लिए धारा 164 की उपधारा (1) ; और

(vii) धारा 164 की उपधारा (2) का खंड (ख), जहां तक यह कर्मचारी पेंशन स्कीम, 1995 से संबंधित है ।

[फा. सं. आर-15011/02/2023-एसएस-II]

विभा भल्ला, संयुक्त सचिव

MINISTRY OF LABOUR AND EMPLOYMENT

NOTIFICATION

New Delhi, the 3rd May, 2023

S.O. 2060(E).—In exercise of the powers conferred by sub-section (3) of section 1 of the Code on Social Security, 2020 (36 of 2020) read with section 14 of the General Clauses Act, 1897 (10 of 1897), the Central Government hereby appoints the 3rd day of May, 2023, as the date on which the following provisions of the said Code shall come into force, namely:—

(i) sub-section (3) of section 15, in so far as it relates to the Employees' Pension Scheme, 1995;

(ii) clause (a) of sub-section (1) of section 16, in so far as it relates to the Employees' Pension Scheme, 1995;

(iii) clause (b) of sub-section (1) of section 16;

(iv) sub-section (2) of section 16, in so far as it relates to the Employees' Pension Scheme, 1995;

(v) section 143, in so far as it applies in giving effect to the provisions of sub-clause (ii) of clause (b) of sub-section (1) of section 16 in relation to the Employees' Pension Scheme, 1995;

(vi) sub-section (1) of section 164 to repeal the corresponding provisions of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (19 of 1952) specified in item 3 thereof; and

(vii) clause (b) of sub-section (2) of section 164 in so far as it relates to the Employees' Pension Scheme, 1995.

[F. No. R-15011/02/2023-SS-II]

VIBHA BHALLA, Jt. Secy.

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KUMER CHAND MEENA